

life exercises or contracts, or intends to exercise any power under the Act, the provisions of the Act are to prevail; and accordingly, notwithstanding anything in the settlement, the consent of the tenant for life is, by virtue of the Act, to be necessary to the exercise by the trustees of the settlement or other person, of any power conferred by the settlement exercisable for any purpose provided for in the Act.

The wording of this clause has given rise to some difficulty, but it has been interpreted by Pearson, J. by treating the first part of the clause as relating to concurrent powers in the tenant for life; in which case, if the powers under the settlement are less beneficial to him than those under the Act, he is entitled to exercise the powers under the Act notwithstanding any restriction in the settlement. The latter part of the clause, however, relates to the case of

* concurrent powers in the trustees of the settle- [*622] ment, or some other person under the settlement, and in the tenant for life, and requires the consent of the tenant for life to the exercise of the powers in addition to the requirements of the settlement (a). Where the tenant for life is capable of exercising his powers, the Court will not, even though he be a bankrupt, make an order under the *Settled Estates Act*, giving general powers of sale or of leasing to any other person, but if the tenant for life wrongfully refuse to exercise his powers, so as to prevent obvious and practicable improvements from being effected, and the persons interested come before the Court with a well considered scheme, and show that it is for the benefit of the estate that some particular lease should be granted, and that the tenant for life without sufficient reason refuses to exercise his power, the Court will make an order under the *Settled Estates Act* (b).

Settled Estates Act. — Powers already given by an order of the Court under the *Settled Estates Act* are not affected by sect. 56, and the proper course, if it is desired to super-

[(a) *Re Duke of Newcastle's Estates*, 24 Ch. D. 129.]

[(b) *Re Mansel's Settled Estates*, W. N. 1884, p. 209.]